

HOUSE BILL 1940

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, Part 5; Title 29, Chapter 18 and Title
66, relative to unlawful detainer actions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 18, is amended by adding
the following as a new section:

(a) Notwithstanding another law to the contrary, the records of an unlawful
detainer action are confidential and shielded from public disclosure if:

- (1) The action was filed on or after July 1, 2026;
- (2) The case was dismissed by the court or a party;
- (3) An appeal is not pending in the case; and
- (4)

(A) At least three (3) years have passed since the date on which
the action was filed; or

(B) All parties to the action have filed a written stipulation with the
court indicating an agreement to shield the records from public disclosure.

(b) Court records shielded from public disclosure pursuant to subsection (a) are
not open to the public for inspection pursuant to title 10, chapter 7, part 5.

(c) This section does not limit the court, court staff, or the parties to the action
from accessing any records or databases created or maintained by the courts. Records
shielded from public disclosure under subsection (a) may be accessed by the court or
the parties involved in the case at any time.

SECTION 2. Tennessee Code Annotated, Section 10-7-504, is amended by adding the following as a new subsection:

(gg) Notwithstanding § 10-7-503, records of an unlawful detainer action meeting the criteria under SECTION 1 are confidential and are not open for public inspection.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.